

## 25STCV28355 25STCV28355

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-03

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Case Number: 25STCV28355 Hearing Date: August 3, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 3, 2026

Case Name: Century Park v. Fox, et al.

Case No.: 25STCV28355

Matter: Demurrer; Motion to Strike

Moving Party: Century Park, LP

Responding Party: Gerard Fox Law, PC

Notice: OK

Ruling: The Demurrer is sustained, with 20 days leave to amend.

The Motion to Strike is denied as moot.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Century Park, LP demurs to the First Amended Cross-Complaint of Gerard Fox Law, P.C.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

The Demurrer is sustained as to the first cause of action for fraudulent inducement because this claim is not particularly pleaded. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

The Demurrer is sustained as to the second and third causes of action for breach of contract because Cross-Complainant failed to allege the material terms of the 11th floor and 14th floor leases. (McKell v. Washington Mut., Inc. (2006) 142 Cal.App.4th 1457, 1489 [“A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. [] In order to plead a contract by its legal effect, plaintiff must ‘allege the substance of its relevant terms.’ ”].)

The Demurrer is sustained, with 20 days leave to amend.

The Motion to Strike is denied as moot.

Moving party to give notice.